

The complaint

Ms T complains that China Taiping Insurance Co (UK) Limited has turned down a storm damage claim she made on her buildings insurance policy.

What happened

In November 2018, Ms T noticed water damage in two bedrooms in her home. She made a storm damage claim on her buildings insurance policy. China Taiping appointed a loss adjuster to inspect her roof and the bedrooms. The loss adjuster didn't think the damage to Ms T's roof was down to storm, but had been caused by wear and tear over time.

So China Taiping turned down Ms T's roof claim. She asked us to look into her complaint about its decision. An investigator looked into Ms T's complaint about her roof damage claim and didn't think it should be upheld. She agreed the roof damage was likely to be caused by wear and tear. Ms T accepted the investigator's findings.

But the investigator noticed that China Taiping hadn't considered Ms T's internal damage claim. So she set up a new complaint to look into this issue.

China Taiping didn't think Ms T's internal damage claim should be paid. It said that as storm conditions weren't the proximate cause of the roof damage, they also weren't the proximate cause of the internal damage.

Our investigator thought Ms T's internal damage claim should be partly upheld. She didn't think the damage to Ms T's rear bedroom was covered by the policy. She thought the damage had been caused over time by the wear and tear to the roof, rather than being down to storm.

But the investigator thought the internal damage to the front bedroom should be covered. She noted there were storm conditions around the date of the claim. She thought water ingress was consistent with storm damage. The loss adjuster said in their report that the front guttering may have not been able to cope with the rainfall; may have backed up and caused the damage to the front bedroom. So she recommended that China Taiping should pay for the cost of repairs to the front bedroom.

China Taiping disagreed with the investigator. It said the poor condition of the roof had been the reason why rainwater had entered the property and caused internal damage. It said as the roof damage hadn't been caused by storm and there was no accidental damage cover, the claim had been correctly turned down.

Ms T's representative said she still felt she had a valid claim for the damage to the roof and for the internal repairs. But she was willing to accept the investigator's findings and would settle for the costs of internal redecoration to the front and back bedrooms. He told us the situation has had a detrimental impact on Ms T's mental health and has caused her anxiety.

In this decision, I am only considering whether the internal damage to Ms T's property should be covered. The roof damage claim was a separate complaint and the records suggest Ms T accepted the investigator's findings on it.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so, I agree with the investigator that this complaint should be upheld in part. I'll explain why.

When we look at complaints about storm damage, there are three questions that we need to ask:

- Were there storm conditions on or around the date of the claim?
- Is the damage consistent with storm damage?
- Were the storm conditions the main cause of the damage?

If the answer to any of these questions is "no" then the claim won't succeed.

Were there storm conditions on or around the date of the claim?

I've looked carefully at the local weather records for Ms T's area. I can see that there were storm winds and heavy rainfall about two weeks before she made the claim. There were also storm winds and intense rain on the day of the claim. So I think the answer to the first question is 'yes'.

Is the damage consistent with storm damage?

I think internal damage to a property due to water getting in through a damaged roof can often be consistent with storm damage. So I also think the answer to the second question is 'yes'.

Were storm conditions the main cause of the damage?

The back bedroom

I've carefully considered the loss adjuster's report, because this is the only piece of expert evidence I have to show me what's most likely to have caused the internal damage. The report says: *'There is an evident slipped and cracked tile to the back of the house. This is next to the Velux window, consistent to where water is pouring in to the side of it.'* The photos show deep cracks in the space where the tile is missing, along with reasonable moss growth. The loss adjuster didn't think this roof damage was consistent with storm. They suggested that this damage had been ongoing over a period of time.

This area of internal damage was right by the Velux window where the deep crack was noted. And from the photos I've seen, it doesn't look like the damage was fresh. It looks like it had been ongoing for a while. So I think it's most likely that the storm conditions had simply highlighted the existing damage to the underfelt in this part of the roof and allowed water to ingress.

This means I think it was fair for China Taiping to turn down this part of the internal damage

claim.

The front bedroom

I've noted that the quotations for Ms T's roof replacement include replacing the lead guttering. But it doesn't seem to me that the loss adjuster made any firm finding on these being worn or damaged. Instead the report says:

'The guttering to the front elevation may have been unable to cope with recent rain fall and backed up having caused damage to the front bedroom plaster and décor.'

The weather records the loss adjuster relied on noted rainfall of 27.3mm over 24 hours on the date of the loss and 40.2mm about two weeks before. The records I've looked at, which were taken at a weather station two miles from Ms T's home, show rainfall of 58.4mm over 24 hours on the day of the loss. And rainfall of 45.8mm a couple of weeks before. In either case, accompanied by the high winds, it seems that the intensity of the rainfall simply overwhelmed the gutters and caused internal damage.

So on balance, based on what I've seen, I think the storm conditions were the main cause of the damage to the front bedroom. This means I think it would be fair for China Taiping to deal with this part of the claim. If Ms T hasn't yet got a quote for redecoration of this room, she should now do so and send it to China Taiping so it can calculate settlement.

My final decision

For the reasons I've given above, my final decision is that I partly uphold this complaint.

I direct China Taiping Insurance Co (UK) Limited to deal with Ms T's claim for the internal damage to her front bedroom, subject to the remaining terms and conditions of the policy.

Under the rules of the Financial Ombudsman Service, I'm required to ask Ms T to accept or reject my decision before 17 June 2020.

Lisa Barham
Ombudsman